



Ralph A. Schwartz, P.C.

ATTORNEYS AT LAW

888-LAW2(5292)



Ralph A. Schwartz, is the senior partner in the law firm of RALPH A. SCHWARTZ, P.C. Born and raised in Philadelphia, Pennsylvania, Mr. Schwartz received his Bachelor of Science degree from St. Joseph's University in 1989. Mr. Schwartz attended Widener University School of Law and received a Juris Doctorate degree in 1993. The legal career of Mr. Schwartz began in 1993 at the prestigious law firm of Anapol Schwartz in Philadelphia as an associate attorney practicing in the areas of Plaintiff's personal injury, medical malpractice, wrongful death and products liability.

Mr. Schwartz relocated to Las Vegas in 1994 and began working in the field of insurance defense. While representing the interests of the country's largest insurance companies, Mr. Schwartz gained a keen perspective in the manner in which insurance companies operate and evaluate the claims of accident victims. In 1996, Mr. Schwartz became a proud member of the Plaintiff's bar representing victims whose lives were shattered by the negligence of others.

In the formation of his firm, Ralph A. Schwartz, P.C., Mr. Schwartz has developed his law firm into a multi-faceted practice. While always practicing primarily in the area of Plaintiff's personal injury, Mr. Schwartz has expanded his law firm to include a wider range of cases, including all criminal and traffic offenses, warrants, and bankruptcies, as well as contractual and business law. Mr. Schwartz believes the current format of his new firm is the ideal practice, combining years of litigation, hard work, and extensive knowledge in various fields of practice with aggressive, thorough, and honest representation. Mr. Schwartz' litigation experience has resulted in successful resolutions of several multi-million dollar verdicts and settlements for his injured clients. When he is not in court or the office, Mr. Schwartz enjoys traveling with his wife, Michele, and their two children, Ethan and Erica.



RALPH A. SCHWARTZ, P.C.

ATTORNEY AT LAW

• FAX: (702) 888-LAW2(5292)

Claimant: BIANCA. BENAVENTE

Date of Loss: 11/1/2025

IN ORDER TO PRESENT YOUR CLAIM, PLEASE PROVIDE US:

 ACCIDENT REPORT

 AUTOMOBILE INSURANCE DECLARATION PAGE

 PRESCRIPTION RECEIPTS

 RECEIPTS FOR SPECIAL ITEMS

 VERIFICATION OF INCOME

 PHOTOGRAPHS OF INJURIES

 PHOTOGRAPHS OF ACCIDENT SCENE

 ESTIMATE FOR REPAIR OF VEHICLE

 RECEIPTS FOR TOWING, STORAGE AND CAR RENTAL

THANK YOU FOR PROVIDING THE ITEMS CHECKED ABOVE.

DATE

RALPH A. SCHWARTZ, P.C.

Mission Statement

Aggressive advocacy of the rights of injured people.

Welcome

Thank you for selecting Ralph A. Schwartz, P.C. A team of professionals from our office will be working on your case: attorneys, legal assistants, nurses, legal secretaries, investigators and staff members. Our goal is to see you receive full and fair compensation for your injuries and losses.

We know this is a difficult time for you physically and emotionally. While working on your case, we'll do our best to keep you informed. Remember, good settlements take time. Please be patient.

Take a few moments to read this information carefully. Keep it handy. It will help you understand what we are doing as your case moves forward. The information contained in these few pages is general. Be assured that each and every case in our office is handled on an individual basis.

If you have questions, please call the office and speak with one of our attorneys. Call (702) 888-5291 (LAW1) or (866) 963-2330. Our office hours are 8:00 a.m. to 5:00 p.m., Monday through Friday.

How You Can Help

- **Always tell us the whole story** even if the facts are unfavorable to you.
- **If you are thinking about bankruptcy** let us know. It will affect your case.
- **Document your case** by telling your doctor all the effects of your injuries.
- **Keep us updated** if your condition worsens or other accidents happen.
- **Be patient.** We know this is a difficult time. We are working on your case.
- **Don't sign anything**, particularly releases, until you have checked with us.
- **Promptly provide** us with documents we request, i.e. insurance policies.
- **Keep track of the time** you miss from work including for doctor's visits.
- **Keep a record** of your pain, suffering and inconvenience from the accident.
- **Don't talk to anyone** about your case unless authorized by our office.

First Appointment

At the first appointment you will meet with us to discuss the details of your case. You will be asked to sign a Retainer Agreement authorizing us to represent you. This Agreement sets forth our charge for legal services, usually a percentage of the amount we collect for you. The attorney's fee is contingent. If there is no monetary recovery, you are not obligated to pay the attorney's fee.

It will be necessary, during the preparation of your case, for our office to incur expenses from time to time for investigation, medical records and reports, experts, photographs, and other necessary items. These out-of-pocket expenses we pay on your behalf are deducted from your part of the settlement proceeds at the successful conclusion of the case.

Legal Assistant

At your first appointment, a legal assistant will be assigned to work with you to obtain additional information and to assist the attorney handling your case. Your legal assistant is supervised by your attorney, trained to answer your questions and give you the best possible service.

We suggest you contact your legal assistant first, before calling your attorney. Anytime you feel more comfortable talking with your attorney, please indicate this to your legal assistant. An appointment to speak with your attorney will be scheduled.

Investigation

After you become our client, an investigation of your case begins. We obtain the accident report, contact witnesses, gather evidence and verify insurance coverages.

The insurance companies have a computerized index system on a nationwide basis which shows all of the people who have made personal injury claims in the past. Be sure to let us know if you have made any claims before.

Insurance

To ensure that all of your rights are protected, we need to know about your own auto and health insurance in addition to the liable person's insurance. For example, your auto insurance may provide additional benefits such as Medical Payments Coverage as well as Uninsured and Under Insured Motorist coverage(UM/UIM). Be sure to provide us with information concerning the auto insurance covering each vehicle in your household.

It is also important to submit your medical bills to your health insurance plan. Coordinating the various insurance coverages available to you results in maximum compensation at the conclusion of your case.

Property Damage

In most cases, you will be able to settle the vehicle damage claim on your own.

Medical Treatment

As the victim of an accident, you are concerned with where to obtain medical treatment and who's going to pay for it. As a highly respected personal injury law firm, our office can make arrangements for our clients to be treated by some of the most qualified physicians and therapists available. If necessary, payment for treatment can sometimes be deferred until your case is settled.

We will be obtaining a detailed description of your injuries from each doctor and hospital where you received treatment. During your case, our office will contact you periodically to get progress reports with respect to your injuries.

It is extremely important to let us know if you have had any accidents, injuries, major illnesses, or hospitalizations, before or after the accident.

Be sure to keep all appointments with your doctors. It is discourteous to the doctor and damaging to your claim if you fail to show up for an appointment. If you cannot keep your appointment, contact the doctor's office by telephone and reschedule.

It is important that you fully described the effects of your injuries to the doctor. It is difficult for the doctor to completely evaluate and treat you without an accurate account of how these injuries affect you. Depending on the progress of your recovery, you may be referred to other doctors for specialized testing and treatment. Until all of your injuries have been identified and your condition resolves or stabilizes, you should remain under a doctor's care. If you are unable to work, make sure your doctor notes it in your medical records.

Medical Bills

The responsible party's insurance carrier does not handle your bills on a pay-as-you-go program. Once your treatment has resolved and settlement negotiations commence, the insurance company will review the information received, and your case may settle for a lump sum. **In the meantime you must address your unpaid bills.**

If you have health insurance, please stay within the guidelines offered by your carrier. Your bills will be reviewed by your insurance carrier and paid based on your policy provisions. If you were injured in a motor vehicle accident and you have Medical Payments Coverage, have your providers bill your automobile insurance company first. If you are still in need of treatment and your medical payments coverage has been exhausted, continue to treat but have your providers bill your health insurance company.

If you do not have health insurance and do not have any other insurance that would cover your medical expenses, you should pay your bills as they are incurred. If you are not financially able to pay your bills as they arise, you may ask your provider to

treat you on a lien basis. If agreeable, a lien will be placed for services rendered against any future settlement you may receive. If you have health insurance available to pay your medical bills **DO NOT** sign lien papers. Have your medical provider bill your health insurance. **Please remember that if you choose to have your providers treat you on a lien basis, all outstanding lien charges must be deducted from your settlement prior to determining your portion.**

Please make sure all of your medical providers are correctly processing your bills and receiving your insurance payments so that you will not encounter any problems at the time of settlement. If you have any questions while attempting to make these decisions, please do not hesitate to contact us.

In auto accident cases you may have Medical Payments Coverage as an extra benefit for which you have paid a premium. If you, or a resident relative of your household, have Medical Payments Coverage in connection with an automobile policy, give the name of the insurance company and policy or claim number to the doctor's office. In auto accident cases, your Medical Payments Coverage should be utilized first. If these benefits are exhausted, your medical bills should be submitted to your health insurance plan.

We will obtain copies of your medical records and bills directly from your medical providers. We also request that you provide our office with copies of your medical bills periodically in order to keep your file updated. Besides your doctor and hospital bills, be sure to provide us with receipts for prescriptions and medical accessories such as a wheelchair or crutches.

Lost Wages

Depending on the facts of your case you may be entitled to present a claim for your lost wages. Please keep track of any time missed from work because you were under a doctor's no-work order, or at a doctor or therapy appointment.

Please send us the information on the time you missed from work. We will document it with a statement from your employer confirming your job description, pay rate and time lost from work that can be verified by your doctor.

Case Evaluation

Determining the value of a claim requires assessment of a number of factors. The nature and severity of the injury, amount of medical bills, length of treatment, permanent impairment, loss of earnings and damages for pain and suffering must all be considered. There are other variables affecting value such as pre-existing medical conditions, comparative fault and insurance policy limits.

No one can accurately predict the value of your case until all the evidence has been gathered. After considering all the factors, including the affect on you as an individual, we place a range of value on your case.

Settlement Negotiations

Once you have completed your medical treatment and we have obtained all of the records needed to document your injuries and losses, we will submit this information to the insurance company and seek a settlement of your case.

Most personal injury cases settle in the negotiation phase. We will advise you of all settlement offers. If the insurance company offers an amount which fairly compensates you, the case is settled. It takes time to get the insurance company to make a reasonable offer on your case. Please be patient.

Mediation

Mediation may be an alternative in negotiating your case. In mediation, both sides submit their dispute to an impartial person who assists them in trying to reach a mutually agreed settlement. Mediation can be a cost-effective way to resolve your case. The availability, cost and benefits of mediation will be explained by your attorney.

Filing a Lawsuit

If a standstill is reached in negotiations and your case cannot be settled, we will discuss with you the alternative of taking your case to court. When a lawsuit is filed your attorney's fee increases. Additionally, the costs advanced by our office increase as your case progresses. These additional fees and costs are considered as we discuss the pros and cons of accepting the insurance company's best offer or proceeding with litigation.

Litigation

In a lawsuit you are the plaintiff. The responsible party is the defendant. After a lawsuit has been filed the amount of time spent on your case greatly increases. Your lawyer must attend numerous meetings and hearings with the opposing attorney, arbitrator and judge. There are also several phases of "discovery" as your case is prepared for arbitration or trial.

Interrogatories

When your case is filed in court, each side has a right to submit written questions to the other side. The questions are called interrogatories and must be answered by you under oath. Your attorney and legal secretary will assist you in answering these questions.

Request for Documents

After a lawsuit, the defendant may request you provide tax returns and other documents supporting your losses. Your attorney will review these requests with you.

Deposition

Each side has the right to take depositions of the parties to the lawsuit and witnesses. During your deposition the defendant's lawyer will question you under oath

before a court reporter about the accident and your injuries. Your attorney will meet with you before the deposition to prepare, and will be present to assist you.

Independent Medical Examination

The defendant has the right to have you examined by a physician of its choice. The defendant's insurance company will have to pay for the cost of this examination.

Arbitration and Trial

Several months after a lawsuit is filed, your case may be arbitrated. An independent attorney acts as arbitrator during the hearing. Both sides present their case and the arbitrator makes a decision. In most cases the decision of the arbitrator is non-binding. However, if both sides accept the decision, your case is settled. If either side is dissatisfied, the case can be appealed for trial before a judge, or jury. Trials are scheduled by the assigned judge and may be one to two years after a lawsuit is filed.

As your arbitration hearing or trial date approaches, what you can expect to happen and what is expected of you will be explained in detail well in advance.

Even after a lawsuit is filed, rest assured most of our cases (over 99%) settle without a trial. Many settlements come only after a considerable amount of time and resources have been expended. Remember, good settlements take time. Please be patient.

Conclusion

We hope this information helps you understand what we can do together regarding your personal injury claim. If you have any questions about any procedures, please ask your legal assistant for an explanation. We appreciate the confidence shown in us and look forward to representing you.

Referrals

When your friends and family members, or fellow workers are involved in an accident have them call us. We are here to help. Home and hospital visits are available for their convenience. There is no charge for the initial consultation.

We thank you again for choosing us to represent you.

CONTINGENT FEE AGREEMENT - POWER OF ATTORNEY

THIS AGREEMENT made and entered into this ____ day of _____, 2025, at Las Vegas, Clark County, Nevada, between _____, (hereinafter "Clients"), and the Firm of Ralph A. Schwartz P.C., hereinafter known as "Attorney". That I/we do verify and represent that the facts presented to Ralph A. Schwartz P.C. regarding the cause of action for which Attorney will represent me/us are true and accurate to the best of my/our knowledge and I/we do hereby appoint Ralph A. Schwartz P.C., Attorney at Law, with the firm/attorney of substitution of attorney, to act as my/our attorneys to represent them for damages against her resulting from personal injuries and/or property damages, sustained by her on or about the 1 day of NOV, 2025, by _____.

Client initials BB

I/WE HEREBY AGREE THE ATTORNEY SHALL RETAIN AS HIS ENTIRE FEE IN THIS MATTER AS FOLLOWS: 33 1/3% (THIRTY-THREE AND ONE THIRD PERCENT) OF THE GROSS SUM COLLECTED BY SETTLEMENT, BEFORE A LAWSUIT IS FILED.

OR 40% (FORTY PERCENT) OF THE GROSS AMOUNT RECOVERED WHETHER IT BE BY AWARD MADE THROUGH ARBITRATION OR MEDIATION WITH OR WITHOUT SUIT, OR IF A LAWSUIT IS FILED, THEN BY SETTLEMENT WITHOUT LITIGATION, BY VERDICT, BY SETTLEMENT AFTER A LAWSUIT IS FILED, OR JUDGMENT AT ANY TIME.

OR 45% (FORTY FIVE PERCENT) OF THE GROSS AMOUNT RECOVERED IN THE EVENT AN APPEAL OF ANY VERDICT, DECISION, ORDER OR OTHER APPEAL OF ANY KIND IS REQUIRED TO PROSECUTE THE CASE EVEN IF THE MATTER THEN SETTLED PRIOR TO THE COMPLETION OF SAID APPEAL THE COSTS AND LITIGATION EXPENSES ADVANCED BY ATTORNEY AND ANY MEDICAL EXPENSES OWING ARE DEDUCTED FROM CLIENTS PORTION OF THE GROSS RECOVERY.

Client initials BB

I/WE AGREE I/WE AM/ARE LIABLE FOR COURT COSTS AND EXPENSES INCURRED BY THE ATTORNEY NECESSARY FOR THE PROSECUTION OF THE CASE REGARDLESS OF THE OUTCOME OF THE CASE. WITH THE EXCEPTION OF COMPLICATED CASES WHERE SUBSTANTIAL COSTS ARE EXPECTED, THE ATTORNEY WILL ADVANCE THE COSTS AND WILL BE REIMBURSED FOR THOSE COSTS AT THE CONCLUSION OF THE CASE. IN ANY COMPLICATED CASE WHERE SIGNIFICANT COSTS ARE EXPECTED, THE ATTORNEY RETAINS THE RIGHT TO REQUIRE THE CLIENT'S ASSISTANCE WITH COSTS DURING THE COURSE OF THE REPRESENTATION AND WILL NOTIFY THE CLIENT IN WRITING REQUIRING PAYMENT OF COSTS WITHIN THIRTY (30) DAYS.

Client initials BB

In every case there is a fee charged to cover ordinary costs of postage, telephone, facsimile, electronic media, overnight or express mail, couriers, investigators, travel, runners or other services charged.

Client initials BB

In any case where a determination is made by the attorney that the client's assistance with costs during the course of representation is required, he will notify the client in writing requiring payment of costs within thirty (30) days.

Client initials BB

In the event the client's case reaches a point in the litigation where it may be resolved, either by way of settlement offer, by submission to arbitration, short trial, or other alternative method of dispute resolution and the attorney recommends settlement or arbitration and the client rejects the attorney's opinion and the client requires the attorney continue with the prosecution of the claim against the advice of the attorney, the client must, from that point forward, reimburse the attorney for all outstanding costs incurred to that date and the client shall advance all further costs as they are incurred. If the client fails to pay or advance costs of litigation, the attorney shall be permitted to withdraw and assert a lien on the file for services rendered to that date. Payment of costs advanced to that point shall be paid by client prior to release of the file to the client. Client is personally responsible for all costs advanced by attorney prior to the attorney's voluntary or involuntary withdrawal (termination of services) of the attorney.

 Ralph A. Schwartz, P.C.
ATTORNEYS AT LAW

Client initials BB

(COURT COSTS AND FEES)

Further, I/we understand that I/we may in the event the case is lost during LITIGATION, ARBITRATION, MEDIATION, SHORT TRIAL, JUDGMENT and/or APPEAL, be liable for the opposing party's attorney's fees incurred in the action or legal proceeding. In the event of a loss, the client will be liable for the opposing parties' costs as required by law. I/we understand that a suit brought solely to harass or to coerce a settlement may result in liability for malicious prosecution or abuse of process.

Client initials BB

(RESPONSIBLE FOR ADVERSE ATTORNEY'S FEES)

It is further understood and agreed by the undersigned parties that the attorney is to have a lien for work performed and time spent on the claim and all matters relating to it; The attorney may retain as his lien his share out of any amount collected. That client agrees to make no settlement without attorney's consent without obligating (himself/herself/themselves) to pay the attorney. That the attorney has been a licensed multiple jurisdictions with over two decades of experience and agrees that attorney may assert his lien at the rate of **\$1,000.00 per hour** for in office work and **\$1,000.00 per hour** for out of office work on the case, to be billed based on the time spent in appointments, calls, court appearances, preparation of documents and letters. The attorney may assert a lien: (A) by way of assertion of the contingent fee based on an offer made by the adverse party, or its representative, prior to or at the time the client determines he or she no longer wishes the attorney to represent their position in the case, or if the attorney, for any reason, voluntarily withdraws, or (B) by the hour, based on work done plus costs advanced to date of withdraw of representation. The Attorney specifically reserves the right to withdraw from the case at any time for any reason.

Client initials BB

(LIEN ON DISCHARGE)

It is understood that the attorney, and/or his associate attorneys, are to make no settlement without the verbal or written consent of the client nor shall the client make any settlement without consent of the attorney. However, client does agree to accept an offer of the entirety of insurance policy limits available for Client's claim(s) and attorney, therefore, has the right to accept an offer of policy limits from any entity or party.

Clients Initials BB

(ATTORNEY AND CLIENT SETTLEMENT)

ANY AND ALL MEDICAL EXPENSES INCURRED, CLAIMS, OR LIENS by the Client are payable by the Client and the sole obligation of the Client. Pursuant to NRPC 1.15(d), Nevada Ethics Opinion No. 31, Achrem v. Expressway Plaza Limited, 112 Nev. 737, 917 P.2d 447 (1996), attorneys must withhold funds from a client's recovery in which a third-party creditor has a claim or lien against the funds. Client remains ultimately responsible to ensure that all medical bills are paid as Attorney may be unaware of the existence of medical bills or unpaid copays. **The client understands and agrees that the attorney has no obligation, as part of his representation or as a condition of representation, settlement or resolution of the case, to negotiate with clients health care providers to reduce the charges of the client's health care providers.**

Client initials BB

(MEDICAL EXPENSES)

Client understands that the attorney has made no guarantees regarding successful termination of the said cause of action, and all expressions relative thereto are matters of his professional opinion only. I/we further represent that all material facts regarding said cause of action, how it occurred, medical treatment records to date, and statements made are true and correct and that client has not misrepresented anything regarding the facts to the attorney and I/we further request that I/we will apprise our attorneys of anyone who attempts in any fashion to influence a false claim or encourage me to promote a false claim.

Ralph A. Schwartz, P.C.
ATTORNEYS AT LAW

Client initials BB

(SUCCESSFUL CONCLUSION /FALSE CLAIMS)

Attorney is hereby granted a limited power of attorney so that they may have full authority to prepare, sign and file all legal instruments, pleadings, drafts, releases, dismissals, checks, authorizations and papers as shall be reasonably necessary to handle and to conclude this representation including settlement and/or reducing to possession all monies or other things of value due client under his/her claim(s), including, but not limited to, signing client's name on settlement checks and depositing into Attorney's trust account. Client expressly authorizes Attorney to negotiate medical payments, insurance checks or drafts and/or checks or drafts from insurance providers that arrive prior to settlement of the case. This negotiation shall be for the sole and exclusive purpose of depositing checks into Attorney's trust account so that the checks or drafts will not unduly age prior to depositing and so Client's personal presence will not be required for such a technical purpose. Client specifically authorizes Attorney to affix Client's signature to any checks or drafts for such limited purposes. Attorneys are also authorized and empowered to act as Client's negotiator in any and all settlement negotiations concerning the subject of this agreement. Attorney is authorized to sign any medical authorization or other release to obtain information necessary for investigating or prosecuting client's case. Attorney is authorized to exercise all lien rights, disburse costs, attorney's fees earned, and assignments voluntarily executed by we/me and, in the event of recovery herein, I fully understand that all these may be disbursed in the same order prior to distribution to me of my net recovery

Client initials BB

(POWER OF ATTORNEY)

Pursuant to the Nevada Rules of Professional conduct 1.5 (E) states that an attorney may share fees with another attorney if the total fee is reasonable and the client agrees to the arrangement, including the share each lawyer will receive and the agreement is in writing. I/We acknowledge that we have been advised that Ralph A. Schwartz P.C may share the responsibility and work on this file as well as split any attorney's fees earned on this file and I/We agree that we have been advised as such and consent to the sharing of any attorney's fees earned by Ralph A. Schwartz P.C

Client Initials BB

(FEE SPLITTING)

If settlement of this case is made by structured settlement, attorney fees will be computed on the basis of a percentage of the total present value and court costs of the settlement which shall be paid out of the initial cash payment.

Client initials BB

(ELECTRONIC RECORDS NO PAPER FILE)

Client understands and agrees that attorney keeps electronic records only and consents to the same. No paper of any kind will be kept in the clients' matter.

Client initials BB

(NO TAX ADVICE)

Client understands and agrees that Ralph A. Schwartz P.C. never offers tax advice of any kind.

Client initials BE

(BANKRUPTCY PROVISIONS)

Client represents to the Attorney that Client has not filed bankruptcy since the time of the loss in this matter, is not presently, nor does Client contemplate filing for Bankruptcy; Client will inform Attorney should such a course of action be contemplated in the future. Client acknowledges that any fees garnered as a result of this claim are subject to such proceedings wherein they are to be scheduled as an asset by Client and that Attorney must turn over Client's portion of the Client's recovery to the Bankruptcy Trustee. The Bankruptcy Trustee than may distribute the exempted amount to the Client. Client further acknowledges that any expense which the Attorney may incur to protect attorney's fees from said result shall be subtracted from the recovery that normally would flow to Client as his/her share of recovery. Client is not currently in a pending Bankruptcy and does not contemplate filing Bankruptcy for the duration of this claim.



Ralph A. Schwartz, P.C.

ATTORNEYS AT LAW

Client Initials BB

(CHILD SUPPORT)

Client represents that Client does not owe back due child support. If Client does owe delinquent child support, client is aware that pursuant to NRS 125B.140 the Nevada Child Enforcement Office has a lien on Client's settlement. Client's settlement may first be used to pay client's obligation for any delinquent child support, prior to the Client receiving their settlement.

Initials BB

(CLIENT'S RECEIPT OF AGREEMENT AND ACKNOWLEDGMENT OF TERMS)

Client has read and fully understands all of the terms and conditions of this Agreement and upon execution thereof. Client is further informed that client may seek outside review of this contract by another lawyer.

Client Initials BB

(DISBURSEMENT OF FUNDS)

Any distribution of any recovered funds shall be made after monies are received, negotiable instruments (e.g., checks) are deposited and cleared, and lien holders are satisfied. Client shall be responsible for any debts or liens owed and related to the claim that Attorney is unaware of. Client shall be provided with a written, itemized disbursement of all monies received and paid on behalf of client's claim. Any funds received shall be disbursed first to pay costs (with associated interest and fees) incurred in prosecuting Client's case; second to Attorney to pay legal fees calculated based upon gross recovery; third to medical facilities, health insurance, Medicare, Medicaid, and any lienholders, and the remainder shall be disbursed to Client

Client initials BB

NOTICE OF ATTORNEY'S LIEN

Pursuant to NRS 18.015 you will take notice that the attorney Ralph A. Schwartz, Esq. has a lien against any recovery in this action in the amount of -all costs incurred in this action, and
-33% of the gross recovery for any sums recovered prior to a lawsuit being filed, or
-40% of the gross recovery for any sum recovered after a complaint has been filed and prior
to any appeal of any final judgment, or
-45% of the gross recovery for any sum recovered after any notice of appeal is filed.

BIANCA BENAVENTE

Client

Attorney

ELECTRONIC MEDIA AND SURVEILLANCE ACKNOWLEDGMENT

A. INTERNET, SOCIAL NETWORKS, AND ELECTRONIC MEDIA:

I, BIANCA BENAVENTE, acknowledge and understand that the interested insurance companies and/or their attorneys will likely investigate my activities online. Such online activities may include, but are not limited to, activity on social networking sites and blogs, as well as any other means by which information about myself is posted online. I understand that any such information can be used against me in this case and may be detrimental to the value thereof. To protect my interests, I understand that my attorney has recommended that I remove, deactivate or stop using any personal social networking accounts including, examples include but are not limited to - Clubhouse - Meetup - Reddit - Tumblr - Facebook - Parler - Skype - Twitter – Foursquare - Pinterest - Snapchat - Whatsapp - Instagram - Quora - Tiktok - Youtube – LinkedIn as well as any blogs during the pendency of this litigation. My attorney has also advised that I not communicate electronically via text, email or any other means regarding any aspect of my case with anyone other than my attorney or his legal representatives as I understand such communications may be discoverable in my case. This include my medical providers which communications are not privileged in a litigation context. I further understand that information about myself that other people post will likely also be used against me.

B. SURVEILLANCE:

I understand and acknowledge that I may be under surveillance by the interested Insurance companies at any time. Such surveillance may include, but is not limited to, being followed by private investigators hired by the insurance companies and/or their attorneys. I further understand that any evidence obtained by such surveillance including, but not limited to, video footage and photographs, can be used against me by the other side during the pendency of this matter.

Date

BIANCA BENAVENTE

Client

CLIENT INTAKE

Initials: BB

Source: _____

Today's Date: _____

Fee: _____

SOL: _____

SYNOPSIS:

ATTY/ CASE MGR

Case Type

DOI

Location: _____

State: _____

PLAINTIFF
CO-PLAINTIFF

Prefix

BIANCA

Suffix

er

Date of Birth

M F

Represented ☐

☐ If Responsible for someone else, then Relationship

Address

Social Security Number

Married At Time of Incident?

Spouse

Emergency Contact

Prior Claims:

Position in Accident:

Prior Medical History:

Felony Convictions:

Client Insurer/Address:

Policy/Claim#:

Limits:

Adjuster:

Phone:

Named Insured:

UM/UIM:

MED PAY:

Private Health:

At the time of the accident, did you live with any relatives?

Do they have any vehicles?

Are you named on any other policies?

Employer

Contact Info

Position & Duties

Rate of Pay

Dates Lost

PARTY: ☐ DEFENDANT **List Co-Defendants, if applicable: ☐ CO-DEFENDANT						
Prefix	First	MI	Last Name	Suffix	Gender M F	DOB
Address			☎	Social Security Number		
			☎			
			☎	Role/Position in Vehicle		
Defendant Insurer/Address:			Policy/Claim#:		Limits:	
			Adjuster:		Phone:	
			Named Insured:			

POLICE		
Investigated by: LVMPD NLVPD HPD NHP		Report #
Address	Officer	Badge#
	Phone	

INJURIES & PROVIDERS			
Injuries / Complaints			
Were you treated by paramedics? Y N		If transported, by whom?	
Did you go to the ER? Y N		Hospital: Did you have X-Rays? Y N	
Name / Address / Ph #		Name / Address / Ph #	
Treatment Dates:		Treatment Dates:	
Name / Address / Ph #		Name / Address / Ph #	
Treatment Dates:		Treatment Dates:	

WITNESSES	
Name of Witness	Name of Witness
Contact Info	Contact Info

Client: _____

ADDITIONAL PROVIDERS

Name / Address / Ph # Treatment Dates:	Name / Address / Ph # Treatment Dates:
Name / Address / Ph # Treatment Dates:	Name / Address / Ph # Treatment Dates:
Name / Address / Ph # Treatment Dates:	Name / Address / Ph # Treatment Dates:
Name / Address / Ph # Treatment Dates:	Name / Address / Ph # Treatment Dates:
Name / Address / Ph # Treatment Dates:	Name / Address / Ph # Treatment Dates:

PROPERTY DAMAGE

PD Complete? Y N	Location of Damage:	Location of Vehicle:	
Vehicle Year:	Make/Model:	Color:	Plate#
Vehicle Owner/Address:			PD Amount

NOTES, LETTERS & PLAN

Letters / Requests

**Please specify providers/ facility or letter*

- ☐ Client.Welcome(23)
- ☐ Client.Stages(54)
- ☐ MedPay.name of Insurance (79) *
- ☐ Adverse.name of insurance (94) *
- ☐ Police Report *
- ☐ R&B.Ambulance (96) *
- ☐ R&B.Hospital (89) *
- ☐ R&B.ER Doctor Bill (90) *
- ☐ R&B.Radiology Bill (91) *
- ☐ R&B.provider (92) *
- ☐ Other *
- ☐ Other *
- ☐ Other *

Insurance Summary

Please identify if type of Insurance is "KNOWN", "NONE" or "UNKNOWN"

<u>TYPE</u>	<u>Known</u>	<u>None</u>	<u>Unknwn</u>
Health	☐	☐	☐
MedPay(car in)	☐	☐	☐
MedPay(clmnt)	☐	☒	☐
UM/UIM(car in)	☐	☐	☐
UM/UIM(clmnt)	☐	☐	☐
MedPay & UM/UIM(resrel)	☐	☐	☐
BI (owner)	☐	☐	☐
BI (driver)	☐	☐	☐

Notes



**AUTHORIZATION FOR RELEASE OF PROTECTED HEALTH INFORMATION,
EMPLOYMENT & ALL OTHER RECORDS**

To: _____

This will authorize the release of protected health information pursuant to 45 CFR Parts 160 and 164. The undersigned authorizes the release and disclosure to Ralph A. Schwartz, P.C. or its representatives, orally or in writing as they request, any and all information, including but not limited to medical records and reports, treatment records, psychological and psychiatric records, questionnaires, nurses notes, handwritten notes, pharmaceutical records, prescriptions, physical therapy records, workers compensation claim information and documents, billing statements, and correspondence regarding the undersigned's condition, or any child of the under-signed, when under your observation or treatment, including history, findings and observation, conclusion, x-ray readings and diagnosis, and your prognosis as to subsequent or future development and to photocopy such records as may be required. You are further authorized to release myelograms, x-rays, CT scans, or MRI images for independent examination, providing the same are returned to you within thirty days from the date of their release.

This disclosure is at my request for use in and disclosure as necessary for insurance claims and litigation. I expressly waive the doctor-patient privilege as to the above information and records provided to Ralph A. Schwartz, P.C. This will authorize the bearer to examine, inspect and make photo static copies of all employment, work, personnel, police and all other records or other documents in your possession pertaining to the undersigned, or any child of the undersigned.

This authorization will expire three (3) years from the date this authorization is signed. The undersigned acknowledges the right to revoke this authorization at any time by giving written notice of my revocation to Ralph A. Schwartz, P.C. The revocation will be effective only upon receipt, except to the extent that the provider has acted in reliance on the authorization. I further understand that I may refuse to sign this authorization and that my refusal to sign this authorization will not affect my ability to obtain treatment, payment or enrollment/eligibility for benefits. The undersigned hereby acknowledges that the PHI used or disclosed may be subject to re-disclosure by the recipient, in which case it may no longer be protected under the HIPPA Privacy Rule.

A photocopy of this Authorization is to have the same force and effect as the original.

Signature of Patient or Legal Representative Date

SUBSCRIBED & SWORN to before me
this ____ day of _____, 20__.

Printed Name of Patient or Legal Representative

Relationship to Patient or Legal Representative

NOTARY PUBLIC In and For Said
County and State.

Date of Birth Social Security Number

Date of Service